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IN THE DISTRICT COURT OF THE FIRST CIRCUIT

HONOLULU DIVISION

STATE OF HAWAI'I

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawai'i nonprofit corporation, by its Board of Directors,

Plaintiff,

v.

NIKODEM PIKOR,

Defendant.

CIVIL NO. 1RC19-1-0003776

THYSSENKRUPP ELEVATOR CORPORATION'S MOTION FOR SUMMARY JUDGMENT ON THE THIRD-PARTY COMPLAINT FILED JULY 8, 2019

MEMORANDUM IN SUPPORT OF MOTION

DECLARATION OF CHUCK DECOITO

DECLARATION OF COUNSEL

EXHIBITS "A" - "D"

NOTICE OF MOTION HEARING and CERTIFICATE OF SERVICE

(*caption continued on next page*)

	HEARING: Date: January 21, 2020 Time: 8:30 a.m. Judge: Presiding (No trial date set).
NIKODEM PIKOR, Third-Party Plaintiff, v. THYSSENKRUPP ELEVATOR CORPORATION, Foreign Profit Corporation, Third-Party Defendant.	

THYSSENKRUPP ELEVATOR CORPORATION'S MOTION TO FOR SUMMARY JUDGMENT ON THE THIRD-PARTY COMPLAINT FILED JULY 8, 2019

Third-Party Defendant THYSSENKRUPP ELEVATOR CORPORATION ("**TKE**") moves for summary judgment on Defendant NIKODEM PIKOR'S Third-Party Complaint filed July 8, 2019 ("**Third-Party Complaint**").

The claim in Count One of Pikor's Third-Party Complaint rests on the allegation that he is a third-party beneficiary of the elevator maintenance contract between TKE and the managing agent of Plaintiff ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC. The indisputable material facts and settled Hawai'i law confirm that Pikor is neither a party to the elevator maintenance agreement nor a third-party beneficiary of the agreement. Because Pikor is not a party to, or a third-party beneficiary of, the elevator mainte-

nance agreement, he lacks standing to assert a breach of the agreement. The claims in Count Two fail as a matter of law because Pikor seeks damages under Hawai'i Revised Statutes ("**HRS**") section 481A-3 but the statute does not authorize damages, pursues a claim under the Penal Code but there is no private right of action under the Code and seeks damages under HRS chapter 480 as a "consumer" but Pikor is not a "consumer" for purposes of the chapter. The dispute is between Pikor and the AOAO. TKE should not have been made a party to it. Summary judgment should be granted.

This motion is made pursuant to Rules 7 and 56 of the Hawai'i District Court Rules of Civil Procedure and Rule 7 of the Rules of the District Courts of the State of Hawai'i and is supported by the attached memorandum, Declaration of Chuck DeCoito, Declaration of Counsel, and exhibits.

DATED: Honolulu, Hawai'i, January 6, 2020.

CADES SCHUTTE
A Limited Liability Law Partnership

/s/ *Jarrett A. Dempsey*
CALVERT G. CHIPCHASE IV
JARRETT A. DEMPSEY
Attorneys for Third-Party Defendant
THYSSENKRUPP ELEVATOR
CORPORATION

IN THE DISTRICT COURT OF THE FIRST CIRCUIT

HONOLULU DIVISION

STATE OF HAWAI'I

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawai'i nonprofit corporation, by its Board of Directors, Plaintiff, v. NIKODEM PIKOR, Defendant.	CIVIL NO. 1RC19-1-0003776 **MEMORANDUM IN SUPPORT OF MOTION**
NIKODEM PIKOR, Third-Party Plaintiff, v. THYSSENKRUPP ELEVATOR CORPORATION, Foreign Profit Corporation, Third-Party Defendant.	

MEMORANDUM IN SUPPORT OF MOTION

I. INTRODUCTION

Third-Party Defendant Thyssenkrupp Elevator Corporation ("**TKE**") has a contract with Plaintiff Association Of Apartment Owners Of Marine Surf Waikiki, Inc. (the "**AOAO**") for elevator maintenance. On May 9, 2018, TKE dispatched two technicians in response to a call from an agent of the AOAO indicating that one of

the elevators located at the Marine Surf Condominium Project, 364 Seaside Ave., Honolulu, Hawai'i 96815 (the "**Marine Surf Condominium**"), was unresponsive. The agent told the technicians that the elevator had become unresponsive after a resident left a large plastic storage container in the doorway. After inspecting the elevator, the TKE technicians determined that the elevator had been rendered inoperable due to misuse. The TKE technicians repaired the elevator and returned it to service. Because repairs for elevator issues caused by misuse are not covered by the elevator maintenance agreement, TKE billed the AOAO $2,260.15 for the repairs. The AOAO paid the bill.

The AOAO subsequently sought reimbursement for those costs from Defendant Nikodem Pikor because the AOAO believes that Pikor left the plastic container in the elevator doorway. Pikor failed to reimburse the AOAO. The AOAO responded by filing the Complaint in this action. Pikor filed a Counterclaim against the AOAO and a Third-Party Complaint (the "**Third-Party Complaint**") against TKE.

The Third-Party Complaint asserts two claims against TKE. First, Count One alleges breach of contract. Exhibit A (Third-Party Complaint) ¶6. In making this claim, Pikor attempts to enforce the elevator maintenance agreement between the managing agent of the AOAO and TKE. Pikor is not a party to the agreement, he is not mentioned in the agreement and there is no evidence that the contracting parties intended for Pikor to be a beneficiary of the agreement. On these indisputable facts, Pikor does not have standing to assert any right under the agreement.

Because Pikor lacks standing to sue for breach of the elevator maintenance agreement, Count One fails as a matter of law.

Second, Count Two alleges a claim for unfair and deceptive trade practices allegedly arising out of TKE's decision to bill the AOAO for the repair services provided. *Id.* ¶7. In support of this claim, Pikor cites Hawai'i Revised Statutes ("**HRS**") sections 481A-3, 708-870 and 480-2. *Id.* Pikor does not have a cause of action under any of those provisions: (1) The sole remedy under HRS section 481A-3 is injunctive relief, which Pikor does not seek; (2) HRS section 708-870 is a provision of the penal code, and there is no civil private right of action; and (3) Pikor is not a "consumer" pursuant to HRS section 480-2 because TKE did not solicit or provide services to Pikor and did not bill Pikor for the services that were provided to the AOAO. Accordingly, Count Two fails as a matter of law.

Summary judgment should enter in favor of TKE and against Pikor.

II. BACKGROUND

A. The Elevator Maintenance Contract Is Between the Managing Agent of the AOAO and TKE.

On or about June 14, 2010, the AOAO, by and through its managing agent, W.E. Denison Corporation, entered into an automatically renewing contract for elevator maintenance and callback services ("the "**Elevator Maintenance Agreement**") for the two elevators located at the Marine Surf Condominium Project, 364 Seaside Ave., Honolulu, Hawai'i 96815 (the "**Marine Surf**"). *See* Exhibit B (Elevator Maintenance Agreement). The only parties to the agreement are TKE and W.E.

Denison Corporation, as agent for the AOAO. *Id.* Neither Pikor nor any other member of the AOAO is mentioned in the Agreement. *See id.*

Under the Elevator Maintenance Agreement, TKE agreed to perform maintenance and callback services for the elevators at the Marine Surf in exchange for a set monthly fee. Covered maintenance services include regular examination and adjustment of the elevator components. *Id.* at 2. Covered callback services include on-demand service visits from a TKE technician for "minor adjustments and response to emergency entrapments that can be accomplished in two hours or less (excluding travel time) and do not include regularly scheduled maintenance visits." *Id.* Other services may be performed by a TKE technician but are not included in the monthly fee and are billed separately. The Elevator Maintenance Agreement expressly exempts from coverage service, renewal, replacement or repair of the elevator equipment

> due to any one or more of the following: **anyone's abuse, misuse and/or vandalism of the equipment; anyone's negligence in connection with the use or operation of the equipment**; . . . **or any other reason or cause beyond our control that affects the use or operation of the equipment.**

Id. at 3 (emphasis added).

B. TKE Repaired Damage to an Elevator.

On May 9, 2018, an agent of the AOAO called the TKE office to inform TKE that an elevator had become unresponsive. Exhibit C at 1 (TKE service tickets for work performed on 05/09/18 and 05/10/18). In response, TKE dispatched two technicians who examined the elevator and determined that the doors had been knocked off the tracks due to misuse of the elevator. *Id.* at 1. The technicians repaired the

elevator over the next two days. *Id.* at 1–3. Because damage caused by misuse is not covered under the Elevator Maintenance Agreement, TKE billed the AOAO $2,260.15 for the repair of the elevator. Exhibit D (Invoice to AOAO). At no time did TKE bill Pikor for the repair of the damage or otherwise seek compensation from Pikor. Declaration of Chuck DeCoito ¶8. Indeed, TKE did not communicate with Pikor at all prior to the commencement of this litigation and all communication since has been through counsel. *Id.* at ¶9.

III. LEGAL STANDARD

Pursuant to Rule 56(c), summary judgment "shall be rendered forthwith if the pleadings, depositions, answers to interrogatories, and admissions on file, together with the affidavits, if any, show that there is no genuine issue as to any material fact and that the moving party is entitled to judgment as a matter of law." The "district court must grant a motion for summary judgment when the moving party: (1) has shown that there is no genuine issue regarding any material fact, and (2) is entitled to judgment as a matter of law." *Citibank, N.A. v. Freitas*, 133 Hawai'i 447, 329 P.3d 352 (Table), 2014 WL 2440137, Case No. CAAP-13-0000208, at *1 (Haw. Ct. App. May 29, 2014) (unpublished disposition). "A fact is material if proof of that fact would have the effect of establishing or refuting one of the essential elements of a cause of action or defense asserted by the parties." *Id.* (quoting *Kamaka v. Goodsill Anderson Quinn & Stifel*, 117 Hawai'i 92, 104, 176 P.3d 91, 103 (2008)). If the movant "meets its burden of production, the non-moving party must present admissible evidence showing a genuine issue of material fact about an

essential element to avoid summary judgment." *Id.* (citing *Celotex Corp. v. Catrett*, 477 U.S. 317, 322–23 (1986)).

IV. ARGUMENT

A. Pikor's Breach of Contract Claim Fails as a Matter of Law.

Pikor's first claim for breach of contract fails as a matter of law because he is not a party to the Elevator Maintenance Agreement and has no standing to assert rights under the contract. The Elevator Maintenance Agreement is between the managing agent of the AOAO and TKE. Neither Pikor nor any individual member of the AOAO is mentioned in the agreement. There is no evidence that TKE and the AOAO intended to confer a direct benefit on Pikor by entering into the agreement.

Generally, a person who is not a party to a contract has no standing to enforce the contract. *Ass'n of Apartment Owners of Newtown Meadows ex rel. its Bd. of Directors v. Venture 15, Inc.*, 115 Hawai`i 232, 269, 167 P.3d 225, 262 (2007). Indeed, when parties enter into a contract, there is a "presumption that the parties contracted only for themselves." *Id.* at 272, 167 P.3d at 265. Accordingly, "third parties do not have enforceable contract rights." *Id.* at 270, 167 P.3d at 262.

There is a narrow exception to this rule for intended third-party beneficiaries. *Id.*, 167 P.3d at 262. "[A] prime requisite to the status of 'third party beneficiary' under a contract is that the parties to the contract must have **intended to benefit** the third party, who must be something more than a mere incidental beneficiary." *Id.* at 270, 167 P.3d at 263 (quoting *Pancakes of Hawai'i, Inc. v. Pomare Props. Corp.*, 85 Hawai'i 300, 309, 944 P.2d 97, 106 (App.1997) (emphasis added). To qualify for this exception, "it is not enough that the parties know, expect[,] or even

intend that such people may benefit or that they are referred to in the contract." *Id.* at 272, 167 P.3d at 265 (internal quotation marks and citations omitted) (alteration in original). Rather, there must be evidence that the contracting parties intended to confer a direct benefit on the third party. *Id.*, 167 P.3d at 265. **Where a written instrument governs the parties agreement, "Hawai'i courts are loathe to find intended third-party beneficiary status absent a clear recognition of the third party and the conferred benefit.**" *Brewer Envtl. Indus., LLC v. Matson Terminals, Inc.*, No. CIV. 10-00221 LEK-KS, 2011 WL 1637323, at *7 (D. Haw. Apr. 28, 2011) (emphasis added). Thus, Hawai'i law requires a purported third-party beneficiary to identify a "**virtual express declaration to overcome the presumption that the parties contracted only for themselves.**" *Newtown Meadows*, 115 Hawai'i at 272, 167 P.3d at 265 (emphasis added).

Here, the Elevator Maintenance Agreement does not contain a "virtual express declaration" indicating the contracting parties' intent to confer a direct benefit on Pikor. *See generally* Exhibit B. On the contrary, the contract is clearly between two parties: TKE and W.E. Denison Corporation acting as managing agent for the AOAO. *Id.* at 5. The provisions of the contract that Pikor attempts to invoke in the Third-Party Complaint provide:

> We will service **your** equipment described in this agreement on a regularly scheduled basis. . . . ThyssenKrupp Elevator will perform the following services:
>
> Examine **your** elevator equipment for optimum operation. Our examination, lubrication and adjustment will cover the following components of **your** elevator system:
>
> . . .

Car and hoistway door operating devices and door protection equipment

Id. at 2 (emphasis added). The term "your" is clearly defined in the Elevator Maintenance Agreement to mean "W.E. Denison Corporation." *Id.* at 1. Not only is there neither an express nor virtual declaration indicating that Pikor or any other individual member of the AOAO is intended to receive a direct benefit under the agreement, the Elevator Maintenance Agreement does not contain a single reference to Pikor or any other individual member of the AOAO in their individual capacity. *See generally id.* On these indisputable facts, Pikor lacks standing to assert a breach of contract claim. *Newtown Meadows*, 115 Hawai'i at 272, 167 P.3d at 265; *see also Lawry v. Pecan Plantation Owners Ass'n, Inc.*, No. 02-15-00079-CV, 2016 WL 4395777, at *5 (Tex. App. Aug. 18, 2016) ("a party's status as a member of a nonprofit corporation does not automatically confer standing on that party to enforce an agreement between the nonprofit corporation and a third party"); *Barger v. Elite Mgmt. Services, Inc.*, 2018-Ohio-3755, 119 N.E.3d 953 (individual AOAO member was not a third party beneficiary to contract between AOAO and property management company); *Greenacre Properties, Inc. v. Rao*, 933 So.2d 19, 23 (Fla. Dist. Ct. App. 2006) (same). TKE is entitled to summary judgment on Count One as a matter of law.

B. Pikor's Unfair and Deceptive Trade Practices Claim Fails as a Matter of Law.

Count Two of the Third-Party Complaint for unfair and deceptive trade practices fails as a matter of law. In asserting this claim, Pikor relies on HRS sections

481A-3(a)(5) and (a)(12), 708-870(b), and 480-2. Pikor's reliance on these statutes is misplaced for several reasons.

First, Pikor may not maintain a claim under HRS section 481A-3 because he is not seeking injunctive relief. The remedies for an unfair and deceptive trade practice claim under section 481A-3 are outlined in section 481A-4. Under section 481A-4, remedies for a violation of section 481A-3 are limited to injunctive relief and a potential award of attorneys' fees. Chapter 481A does not provide for the recovery damages. *Bill Darrah Builders, Inc. v. Hall at Makena Place, LLC*, No. CV 15-00518 JMS-KSC, 2018 WL 650195, at *9 (D. Haw. Jan. 31, 2018). Pikor does not seek injunctive relief against TKE, and such relief would not make sense in this case. Thus, Pikor's claims under section 481A-4 fail.

Second, insofar as Pikor attempts to rely on HRS section "708-870(b)" no such provision exists. Assuming that Pikor means section 708-870(1)(b) or any of the other subsections of section 708-870, the cited provisions are sections of the penal code and do not create a private right of action. *See e.g., Franklin v. Aiello*, No. 03-11-00497-CV, 2012 WL 4466515, at *2 (Tex. App. Sept. 26, 2012) ("the penal code does not create a private right of action"). Indeed, HRS section 708-870(5) specifically provides, "[t]his section does not apply to deceptive business practices, as defined in subsection (1), for which a specific penalty is provided by a statute other than this [Penal] Code." Accordingly, Pikor's claims under HRS section 708-870 fail.

Finally, Pikor's claim under HRS section 480-2 fails because he is not a "consumer" within the definition of the statute. HRS section 480-2(d) provides that

"**[n]o person other than a consumer**, the attorney general or the director of the office of consumer protection **may bring an action based upon unfair or deceptive acts or practices declared unlawful by this section.**" (emphasis added). Section 480-1 defines the term "consumer" as "a natural person who, primarily for personal, family, or household purposes, **purchases, attempts to purchase, or is solicited to purchase goods or services** or who commits money, property, or services in a personal investment." The Hawai'i Supreme Court has held that individuals who are alleged to be third-party beneficiaries of a contract are not "consumers" under chapter 480 because third-party beneficiaries do not purchase or attempt to purchase and are not solicited to purchase the goods or services that are the subject of the contract. *Hough v. Pac. Ins. Co., Ltd.*, 83 Hawai'i 457, 470, 927 P.2d 858, 871 (1996), *as amended* (Dec. 4, 1996) (holding that a plaintiff was not a "consumer" for the purposes of chapter 480 where the plaintiff relied on third party beneficiary theory to seek enforcement of purchase contracts but did not personally make the purchases); *see also Hunt v. First Ins. Co. of Hawaii, Ltd.*, 82 Hawai`i 363, 373, 922 P.2d 976, 986 (Ct. App. 1996) (holding that customer of grocery store, who was injured by slip and fall at store, could not bring HRS chapter 480 claim against store's insurance company which had refused payment of medical claims, because customer, not having made any purchase from the insurance company, was not a "consumer" who could bring suit).

Here, the Third-Party Complaint does not allege that Pikor purchased, attempted to purchase or was solicited to purchase any goods or services. On the

contrary, the Elevator Maintenance Agreement is between TKE and the managing agent for the AOAO and all repair services were billed directly to the AOAO. Exhibit D. Therefore, Pikor is not a "consumer" for the purposes chapter 480 and cannot maintain an unfair and deceptive trade practices claim. *See Hough*, 83 Hawai`i at 470, 927 P.2d at 871; *Hunt*, 82 Hawai`i at 373, 922 P.2d at 986.

Accordingly, because there is no genuine issue of material fact that Pikor's unfair and deceptive acts claim fails as a matter of law, summary judgment is appropriate on Count II of the Third-Party Complaint.

V. CONCLUSION

For the reasons discussed herein, TKE respectfully requests that summary judgment be entered on the Third-Party Complaint.

DATED: Honolulu, Hawai'i, January 6, 2020.

CADES SCHUTTE
A Limited Liability Law Partnership

/s/ Jarrett A. Dempsey
CALVERT G. CHIPCHASE IV
JARRETT A. DEMPSEY
Attorneys for Third-Party Defendant
THYSSENKRUPP ELEVATOR
CORPORATION

IN THE DISTRICT COURT OF THE FIRST CIRCUIT

HONOLULU DIVISION

STATE OF HAWAI'I

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawai'i nonprofit corporation, by its Board of Directors, Plaintiff, v. NIKODEM PIKOR, Defendant.	CIVIL NO. 1RC19-1-0003776 **DECLARATION OF CHUCK DECOITO**
NIKODEM PIKOR, Third-Party Plaintiff, v. THYSSENKRUPP ELEVATOR CORPORATION, Foreign Profit Corporation, Third-Party Defendant.	

DECLARATION OF CHUCK DECOITO

I, CHUCK DECOITO, hereby declare as follows:

1. At all times relevant to this lawsuit, I was employed by the Honolulu branch of Defendant THYSSENKRUPP ELEVATOR CORPORATION ("**TKE**") as its Service and Repair Operations Manager. I have continuously held this position from 2002 to the present.

2. I make this declaration based on personal knowledge unless otherwise stated.

3. I am competent and authorized to testify as to the matters stated herein.

4. The records of TKE's operations in Honolulu, including elevator service records, invoices, and contracts, are compiled and made in the course of regularly conducted business activity. The aforementioned records are securely maintained and kept in the normal course of TKE's business under my custody and control

5. Attached hereto as Exhibit "B" is a true and correct copy of the Platinum Premier Maintenance Agreement dated June 11, 2010 between W.E. Denison Corporation as managing agent for the AOAO Marine Surf Waikiki, Inc. and TKE.

6. Attached hereto as Exhibit "C" are true and correct copies of service tickets documenting services performed on the elevator bearing the serial number US 133680 located at the Marine Surf Waikiki, 364 Seaside Ave., Honolulu, HI, 96815-2532 from May 9, 2018 to May 10, 2018.

7. Attached hereto as Exhibit "D" is a true and correct copy of an invoice dated May 16, 2018, addressed to the Accounts Payable department of the AOAO Marine Surf Waikiki, Inc., for the services performed on the elevator bearing the serial number US 133680 located at the Marine Surf Waikiki, 364 Seaside Ave., Honolulu, HI, 96815-2532 from May 9, 2018 to May 10, 2018.

8. At no time did TKE bill Third-Party Plaintiff NIKODEM PIKOR for the repair of the damage to the elevator located at Marine Surf Waikiki, 364 Seaside Ave., Honolulu, HI, 96815-2532

9. At no time prior to the commencement of this lawsuit did TKE communicate with Third-Party Plaintiff NIKODEM PIKOR. All communication since the commencement of this lawsuit has been through counsel.

I declare under penalty of law that the foregoing is true and accurate.

Dated, Honolulu, Hawai'i, JAN - 6 2020

CHUCK DECOITO

IN THE DISTRICT COURT OF THE FIRST CIRCUIT

HONOLULU DIVISION

STATE OF HAWAI'I

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawai'i nonprofit corporation, by its Board of Directors, Plaintiff, v. NIKODEM PIKOR, Defendant.	CIVIL NO. 1RC19-1-0003776 **DECLARATION OF COUNSEL**
NIKODEM PIKOR, Third-Party Plaintiff, v. THYSSENKRUPP ELEVATOR CORPORATION, Foreign Profit Corporation, Third-Party Defendant.	

DECLARATION OF COUNSEL

I, JARRETT A. DEMPSEY, hereby declare as follows:

I am attorney with Cades Schutte, LLP, counsel for Third-Party Defendant THYSSENKRUPP ELEVATOR CORPORATION and am duly authorized to make this declaration and do so based upon my personal knowledge unless otherwise indicated.

1. Attached hereto as Exhibit "A" is a true and correct copy of the Third-Party Complaint filed in this action by Third-Party Plaintiff NIKODEM PIKOR on July 8, 2019.

I declare under penalty of law that the foregoing is true and accurate.

Dated, Honolulu, Hawai'i, January 6, 2020

/s/ Jarrett A. Dempsey
JARRETT A. DEMPSEY

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Attorney for Defendant/Third Party Plaintiff

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DISTRICT COURT OF
THE FIRST CIRCUIT

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LEGAL DOCUMENTS
CLERK M. KAUWELOA

IN THE DISTRICT COURT OF THE FIRST CIRCUIT
HONOLULU DIVISION
STATE OF HAWAII

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawai'i nonprofit corporation, by its Board of Directors

Plaintiff

v.

NIKODEM PIKOR

Defendant.

NIKODEM PIKOR

Third Party Plaintiff,

v.

THYSSENKRUPP ELEVATOR CORPORATION, Foreign Profit Corporation

Third Party Defendant.

CIVIL No. 1RC19-1-0003776

THIRD PARTY COMPLAINT; DECLARATION; SUMMONS

I do hereby certify that this is a full, true, and correct copy of the original on file in this office.

Clerk, District Court of the First Circuit
State of Hawaii

EXHIBIT A

THIRD PARTY COMPLAINT AND SUMMONS

1. Third Party Plaintiff NIKODEM PIKOR is a natural person a part-owner of apartment unit No. 906 of the Marine Surf Waikiki Condominium Project located at 364 Seaside Ave, Honolulu, Hawai'i 96815; Mr. Pikor is also a resident of the Marine Surf Waikiki Condominium Project and is an intended beneficiary of an elevator maintenance contract between Plaintiff ASSOCIATION OF APARTMENT OWNERS MARINE SURF WAIKIKI, INC., (hereinafter "AOAO Marine Surf") and Third Party Defendant THYSSENKRUPP ELEVATOR CORPORATION.

2. THYSSENKRUPP ELEVATOR CORPORATION (hereinafter "TEC") is a Foreign For-Profit Corporation (Delaware), utilizing a registered Hawai'i agent: PHCS HAWAII, INC., located at 1600 Pauahi Tower, 1003 Bishop St., Honolulu, Hawaii 96813.

3. On diligent investigation and information and belief, two (2) elevators were permitted and installed in the Marine Surf Condominium Project, 364 Seaside Ave, Honolulu, Hawai'i 96815 during or about 1967 and subject to the State of Hawai'i Elevator Code A17.1(1965) in effect at the time of installation.

4. On or about June 14, 2010, AOAO Marine Surf, by and through its managing agent, W. E. Denison Corporation, agreed to an automatically renewing contract for elevator maintenance services for the two elevators at the Marine Surf Condominium Project, 364 Seaside Ave, Honolulu, Hawai'i 96815 with Third Party Defendant TEC.

5. On or about May 9, 2018, Third Party Plaintiff PIKOR used one of the two elevators and inadvertently left a storage container in a position where automatically closing, bi-parting,

elevator doors (which consist of elevator car doors and hoistway (landing) doors) impacted the storage container as the doors closed; the elevator doors, instead of stopping or re-opening, the hoistway (landing) door uncoupled from the elevator car door clutch and the hoistway (landing) doors were subsequently pushed off their tracks as the elevator car door automatically reopened.

COUNT I: BREACH OF CONTRACT

6. TEC's contract, titled as a "PLATINUM PREMIER MAINTENANCE AGREEMENT" signed by the AOAO Marine Surf's managing agent, promised that:

> ThyssenKrupp Elevator will perform the following services:
> o Examine your elevator equipment for optimum operation. **Our examination,** lubrication and **adjustment will cover the following components** of your elevator system:
> o Control and landing positioning systems
> o Signal fixtures
> o Machines, drives, motors, governors, sheaves, and wire ropes
> o Power units, pumps, valves, and jacks
> **o Car and hoistway door operating devices and door protection equipment**
> o loadweighers, car frames and platforms, and counterweights
> o Safety mechanisms
> o Lubricate equipment for smooth and efficient performance
> **o Adjust elevator parts and components to maximize performance and safe operation** (emphasis added).

Defendant and Third Party Plaintiff PIKOR claims TEC failed to examine and/or adjust "Car and hoistway door operating devices and door protection equipment" designed to prevent the hoistway (landing) doors from uncoupling from the elevator car doors and failed to "adjust elevator parts and components to maximize . . . safe operation" and as a result PIKOR was victimized by one or more concealed defects, including but not limited to worn, misaligned, or misadjusted parts, that threatened the safety of the residents and guests of AOAO Marine Surf and violated the State of Hawai'i Elevator Code which require, among other rules, that:

> Hangers for horizontally sliding doors shall be provided with means to prevent the doors from jumping the tracks. Stops shall be provided to prevent the hanger from leaving the end of the tracks or suitable stops may be provided on the door only. (*American Standard Safety Code for Elevators*.. . ., A17.1-1965, Rule 110.10c).

COUNT II: UNFAIR AND/OR DECEPTIVE TRADE PRACTICES HRS 480-2 and/or 481A-3(a)(5) and (a)(12) or HRS § 708-870(b)

7. Defendant and Third Party Plaintiff PIKOR claims that TEC unfairly and deceptively attributed the defective operation of the particular elevator as a "misuse" on its invoice to AOAO Marine Surf for repair services while admitting, on the same invoice, that the elevator doors "interlock and hangers" were "adjusted" for proper operation; the classification of the elevator defect as "misuse" allows TEC to collect employee overtime reimbursement over and above the money paid by AOAO Marine Surf for contracted maintenance and repair and constitutes an unfair and deceptive practice in violation of Hawai'i Revised Statues (HRS) § 480-2 and/or § 481A-3 or § 708-870(b).

[continued on next page]

PRAYER

Defendant prays for relief as follows:

1. Reimbursement for all fees and costs of investigation incurred since the date of the incident in an amount to be determined at trial as compensatory damages on which an award of treble damages be awarded.

2. The award of a reasonable attorney fee and costs of defense.

3. all other just and reasonable relief.

Dated: Waimanalo, Hawai'i, July 3, 2019.

Joseph N. A. Ryan, Jr. 8607
Attorney for Defendant/Third-Party Plaintiff

DECLARATION

I, NIKODEM PIKOR, have read this Complaint, know the contents, and verify the statements above are true and correct in my personal knowledge and belief. I DECLARE UNDER PENALTY OF LAW THAT THE ABOVE IS TRUE AND CORRECT.

Honolulu, Hawai'i, July 4, 2019

Nikodem Pikor

SUMMONS

Form #1DC50

IN THE DISTRICT COURT OF THE FIRST CIRCUIT
HONOLULU **DIVISION**
STATE OF HAWAI'I

Plaintiff
THIRD- PARTY PLAINTIFF

NIKODEM PIKOR

Reserved for Court Use

Civil No. 1RC19-1-0003776

Defendant
THIRD-PARTY DEFENDANT

THYSSENKRUPP ELEVATOR CORPORATION,
Foreign Profit Corporation

Filing Party/Attorney Name, Attorney Number, Firm Name (if applicable), Address, and Telephone Number

Joseph Ryan, Jr. 8607
Josph Ryan Jr. AAL, LLLc
41-430 Waikupanaha St.
Waimanalo, HI 96795
ph/fax 808 259 6870

SUMMONS

THE STATE OF HAWAI'I:

TO: The Director of Public Safety of the State of Hawai'i, the Director's deputy, or any police officer or other person authorized by the laws of the State of Hawai'i:

This Summons shall not be personally delivered between 10:00 p.m. and 6:00 a.m. on premises not open to the public, unless a Judge permits, in writing on this Summons, personal delivery during those hours.

TO THE DEFENDANT:

You are required to file a written answer or appear before the District Judge of this Court, in the Judge's Courtroom, on the day and at the time designated by the checked box on page 2. If the Defendant is a corporation or limited liability company, Hawai'i law requires it to be represented by an attorney licensed to practice in the State of Hawai'i.

IF YOU OR YOUR ATTORNEY FAIL TO ATTEND THE COURT HEARING AT THE TIME AND PLACE DESIGNATED OR FILE A WRITTEN ANSWER A DEFAULT JUDGMENT WILL BE TAKEN AGAINST YOU FOR THE RELIEF DEMANDED IN THE COMPLAINT.

NOTICE TO PARTIES: (Honolulu Division only): If this case involves a residential lease and if the Defendant(s) disagrees with the statements in the Complaint, the Court may require the parties to submit their dispute to mediation at the Pre-Trial conference that will be scheduled on the Monday, not a holiday, following the court date specified above. If the Monday following your court date is a holiday, the Pre-Trial conference will occur on the next business day. If the parties are not able to resolve the dispute within 20 minutes of mediation, the Cout will set a trial date.

Date: JUL - 8 2019	Clerk M. KAUWELOA (SEAL)

SEE PAGE 2

COURT ADDRESSES AND RETURNABLE DAYS:

☑ **Honolulu Division, 1111 Alakea Street, 10th floor Courtroom 10A or 10B, Honolulu, Hawai'i**

☐ at 8:30 a.m. on the fifth day following date of service, excluding Saturdays, Sundays, legal holidays for summary possession.

or

☑ at 1:30 p.m. on the second Monday following date of service, and should that Monday be a legal holiday then upon the next business day.

☐ **'Ewa Division, 870 Fourth Street, Pearl City, Hawai'i**

☐ at 9:00 a.m. on the second Thursday following date of service, and should that Thursday be a legal holiday then upon the next Thursday.

☐ **Ko'olaupoko OR Ko'olauloa Division, 45-939 Po'okela Street, Kāne'ohe, Hawai'i**

☐ at 9:00 a.m. on the second Friday following date of service, and should that Friday be a legal holiday then upon the next Friday.

☐ **Wahiawā OR Waialua Division, 1034 Kilani Avenue, Wahiawā, Hawai'i**

☐ at 9:00 a.m. on the second Wednesday following date of service, and should that Wednesday be a legal holiday then upon the next Wednesday.

☐ **Wai'anae Division, 4675 Kapolei Parkway, Kapolei, Hawai'i**

☐ at 9:00 a.m. on the second Tuesday following date of service, and should that Tuesday be a legal holiday then upon the next Tuesday.

Mailing address for the Courts: **1111 Alakea Street, Civil Division, Third floor, Honolulu, Hawai'i 96813**

In accordance with the Americans with Disabilities Act and other applicable state and federal laws, if you require an accommodation for a disability when working with a court program, service, or activity, please contact the District Court Administration Office at PHONE NO. 538-5121, FAX 538-5233, or TTY 539-4853 at least ten (10) working days before your proceeding, hearing, or appointment date. **For Civil related matters, please call 538-5629 or visit the District Court Service Center at 1111 Alakea Street, Third (3rd) Floor.**

Platinum Premier Maintenance Agreement

TK-119-0606

Purchaser: W.E. DENISON CORPORATION
~~Bill Denison~~ for:
Marine Surf
364 Seaside Ave
Honolulu, HI 96815
Hereinafter referred to as "Purchaser", "you', and "your".

Location: AOAO Marine Surf
364 Seaside Ave
Honolulu, HI 96815

By: ThyssenKrupp Elevator Corporation
2880 Ualena St
Honolulu, HI 96819
Telephone: (808)839-8139
Fax: (866)251-5478
E-Mail: susanne.fernald@thyssenkrupp.com
Internet: www.thyssenkruppelevator.com
Hereinafter referred to as "ThyssenKrupp Elevator Corporation", "ThyssenKrupp Elevator', "we", "us" and "our".

PLATINUM PREMIER MAINTENANCE AGREEMENT

ThyssenKrupp Elevator agrees to maintain Purchaser's elevator equipment described below in accordance with this agreement. We will endeavor to provide a comprehensive maintenance program designed to protect your investment and maximize the performance, safety, and life span of the elevator equipment to be maintained.

Equipment To Be Maintained

Building Name	Unit Quantity	Manufacturer	Type of Unit	Application of Unit	Unit ID or Serial #
Marine Surf	1	ThyssenKrupp	Geared Traction	Passenger	BH3317
Marine Surf	1	ThyssenKrupp	Geared Traction	Passenger	BH3318

EXHIBIT "B"

Platinum Premier Maintenance Agreement

Preventative Maintenance Program

We will service your equipment described in this agreement on a regularly scheduled basis. These service visits will be performed during normal business working days and hours, which are defined as Monday through Friday, 8:00 AM to 4:30 PM (except scheduled holidays). All work performed before or after normal business working days and hours shall be considered "Overtime".

ThyssenKrupp Elevator will perform the following services:

- Examine your elevator equipment for optimum operation. Our examination, lubrication and adjustment will cover the following components of your elevator system:
  - Control and landing positioning systems
  - Signal fixtures
  - Machines, drives, motors, governors, sheaves, and wire ropes
  - Power units, pumps, valves, and jacks
  - Car and hoistway door operating devices and door protection equipment
  - Loadweighers, car frames and platforms, and counterweights
  - Safety mechanisms
- Lubricate equipment for smooth and efficient performance
- Adjust elevator parts and components to maximize performance and safe operation

Full Coverage Parts Repair and Replacement

ThyssenKrupp Elevator will provide full coverage parts repair and/or replacement for all components worn due to normal wear, unless specifically excluded in the "Items Not Covered" or "Other Conditions" provisions herein. We maintain a comprehensive parts inventory to support our field operations. All replacement parts used in your equipment will be new or refurbished to meet the quality standards of ThyssenKrupp Elevator. Most specialized parts are available within 24 hours, seven days a week. We will relamp all signals as required (during regularly scheduled visits).

Maintenance Control Program

ThyssenKrupp Elevator performs service in accordance with our written Maintenance Control Program. This program meets or exceeds any and all requirements of ASME A 17.1-2007 Code, Section 8.6. The Maintenance Control Program includes ThyssenKrupp Elevator's Maintenance Tasks & Records documentation which shall be used to record all work performed on the equipment and is provided with each controller. We do not perform any tests unless such tests are specifically listed as included elsewhere in this agreement.

Quality Assurance

To help increase elevator performance and decrease downtime, our technicians utilize the latest industry methods and technology available to us for your specific brand of elevator. They will be equipped with our tools, documentation and knowledge to troubleshoot your unique system, as well as access to a comprehensive parts replacement inventory system.

Behind our technicians is a team devoted to elevator excellence. Technicians are supported around the clock by a team of engineers and field support experts. Our North American technical support facilities continuously research advancements in the industry and in your equipment. Also, our internal quality control program ensures optimum and reliable operation of your elevator equipment.

To assure that quality standards are being maintained, we may conduct periodic field quality audit surveys. Your dedicated ThyssenKrupp Elevator representative will be available to discuss your elevator needs with you in all aspects of service and modernization. In addition, you may receive recommendations for upgrades that will also provide you with budget options designed to enhance the appearance, performance and safety of or meet Code requirements for your equipment over time.

Service Requests during Normal Working Days and Hours

Service requests are defined as any request for dispatch of our technician to the location of the equipment covered in this agreement from one or more of the following: you or your representative, the building or building's representative, emergency personnel, passengers through the elevator's communication device and/or from VISTA Remote Monitoring through the elevator's communication line. Service requests include minor adjustments and response to emergency entrapments that can be accomplished in two hours or less (excluding travel time) and do not include regularly scheduled maintenance visits.

We will respond to service requests during normal business working days and hours, as defined above, at no additional charge.

Overtime Service Requests

On all overtime service requests, we will absorb straight time and overtime premium expenses. Overtime service requests are performed before or after normal business working days and hours.

VIEW®

VIEW is ThyssenKrupp Elevator's customer oriented, online service activity reporting system. VIEW allows building owners and managers to monitor our maintenance and service call activity. VIEW can be accessed via the Internet any time, day or night. You can "VIEW' service tickets associated with a single elevator serviced under this agreement, for all the elevators at the location serviced under this agreement, or across an entire portfolio of elevator equipment that is serviced by ThyssenKrupp Elevator. Special considerations regarding VIEW are included herein.

Platinum Premier Maintenance Agreement

☐ VISTA® (Check box if included)

VISTA Remote Monitoring is ThyssenKrupp Elevator's exclusive service for monitoring the status and performance of your elevator(s). VISTA monitors compatible equipment 24 hours per day, 7 days per week, and 365 days per year. Constantly monitoring performance data on your equipment provides ThyssenKrupp Elevator the ability to respond to operational irregularities quickly and more efficiently. With VISTA, we can often dispatch a service technician to your location before any interruption in elevator service occurs. Service visits based on VISTA data will be made during normal business hours on normal business days.

☒ SoundNet® (Check box if included)

SoundNet is ThyssenKrupp Elevator's 24-hour telephone monitoring and emergency call service. Our representatives are trained to handle elevator calls and they can assess the situation and quickly dispatch a technician when necessary. If needed, they can stay on the line to reassure a stranded passenger that help is on the way. SoundNet maintains digital recordings and computerized records of the time, date, and location of calls received and action taken for the benefit of passengers and building owners. Special considerations regarding SoundNet are set forth below.

☒ Periodic Safety Testing (Check box if included)

ThyssenKrupp Elevator will test your equipment in accordance with those 5 year full load test, annual periodic testing requirements as outlined in the American National Safety Code for Elevators and Escalators, ANSI A 17.1, which are in effect at the time this agreement is executed. In the event that the state, city or local governing authority in which the equipment is located has adopted different requirements, ThyssenKrupp Elevator will test your equipment in accordance with those 5 year full load test, annual periodic testing requirements in effect at the time this agreement is executed. You agree to pay for any costs of the inspector and/or inspection fees. Special considerations regarding Periodic Safety Testing are set forth below.

Product Information. You agree to provide ThyssenKrupp Elevator with current wiring diagrams that reflect all changes, parts catalogs, and maintenance instructions for the equipment covered by this agreement (exception: we will supply all of the above for new ThyssenKrupp elevators at no additional cost). You agree to authorize us to produce single copies of any programmable device(s) used in the equipment for the purpose of archival back-up of the software embodied therein. These items will remain your property.

Safety. You agree to instruct or warn passengers in the proper use of the equipment and to keep the equipment under continued surveillance by competent personnel to detect irregularities between elevator examinations. You agree to immediately report any condition that may indicate the need for correction before the next regular examination. You agree to immediately shut down the equipment upon manifestation of any irregularities in either the operation or the appearance of the equipment, to immediately notify us, and to keep the equipment shut down until the completion of any repairs. You agree to give us immediate verbal notice and written notice within ten (10) days after any occurrence or accident in or about the elevator. You agree to provide our personnel with a safe place to work. You agree to provide a suitable machine room, including secured doors, waterproofing, lighting, ventilation, and appropriate air temperature control to maintain that room at a temperature between 50°F and 90°F. You also agree to maintain the elevator pit in a dry condition at all times. Should water or other liquids become present, you will contract with others for removal and the proper handling of such liquids. We reserve the right to discontinue work in the building whenever, in our sole opinion, our personnel do not have a safe place to work. You also agree that if ThyssenKrupp Elevator's inspection of a piece of equipment serviced under this agreement reveals an operational problem which, in ThyssenKrupp Elevator's sole judgment, jeopardizes the safety of the riding public, ThyssenKrupp Elevator may shut down the equipment until such time as the operational problem is resolved. In that event, ThyssenKrupp Elevator will immediately advise you in writing of such action, the reason for such action, and whether any proposed solution is covered by the terms of this agreement.

Other. You agree not to permit others to make alterations, additions, adjustments, or repairs or replace any component or part of the equipment during the term of this agreement. You agree to accept our judgment as to the means and methods employed by us for any corrective work under this agreement. Since ThyssenKrupp Elevator's top priority is the satisfaction of its customers, if you should have any concern(s) with the means and methods used to maintain or repair the equipment covered under this agreement, you agree to provide us with written notice of that concern and give us thirty (30) days to respond either in writing or commence action to appropriately resolve it.

In the event of the sale, lease or other transfer of the ownership or management of the premises in which the elevator(s) or equipment described herein are located, you agree to see that such transferee is made aware of this agreement and agrees to assume and/or be bound by the conditions hereof for the balance of the unexpired term of this agreement. Should the transferee fail to assume this agreement, you shall remain liable for all unpaid amounts, including those owed for the balance of the current unexpired term of this agreement.

Items Not Covered. We do not cover cosmetic, construction, or ancillary components of the elevator system, including the finishing, repairing, or replacement of the cab enclosure, ceiling frames, panels, and/or fixtures, hoistway door panels, door frames, swing door hinges and closing devices, sills, car flooring, floor covering, lighting fixtures, ceiling light bulbs and tubes, main line power switches, breaker(s), feeders to controller, below ground or unexposed hydraulic elevator system, including but not limited to, jack cylinder, piston, PVC or other protective material; below ground or unexposed piping, alignment of elevator guide rails, smoke and fire sensors, fire service reports, all communication and entertainment devices, security systems not installed by us, batteries for emergency lighting and emergency lowering, air conditioners, heaters, ventilation fans, pit pumps and all other items as set forth and excluded in this agreement.

VIEW®. ThyssenKrupp Elevator agrees to provide a user name and password to Purchaser via ThyssenKrupp Elevator's Internet website, www.tke-view.com, for your access to maintenance and service call activity. Purchaser's Internet availability equipment (including hardware and software) and Internet connection shall be provided by others. You acknowledge that data reported prior to January 1, 2004 may not be all-inclusive of work actually performed. Additionally, you acknowledge that any work performed by repair, modernization, and/or construction personnel may not be included or accessible in VIEW until ThyssenKrupp Elevator's PDA system for time reporting is fully deployed to all field employees. Requests for additional information and maintenance and service call activity tickets which are not generated by electronic means shall be made to your local ThyssenKrupp Elevator branch office as shown on page 1 of this agreement. ThyssenKrupp Elevator reserves the right to restrict access to this information if Purchaser's account has an outstanding unpaid balance greater than 30 days and/or if you have provided written notification of your intent to cancel our agreement and/or in the event of anticipated, pending or instigated litigation by either party.

Other Conditions. With the passage of time, equipment technology and designs will change. If any part or component of your equipment covered under this agreement cannot, in our sole opinion, be safely repaired and is no longer stocked and readily available from either the original equipment manufacturer or an aftermarket source, that part or component shall be considered obsolete. You will be responsible for all charges associated with replacing that obsolete part or component as well as all charges required to ensure that the remainder of the equipment is functionally compatible with that replacement part or component. In addition, we will not be required to make any changes or recommendations in the existing design or function of the unit(s) nor will we be obligated to install new attachments or parts upon the equipment as recommended or directed by insurance companies, governmental agencies or authorities, or any other third party. Moreover, we shall not be obligated to service, renew, replace and/or repair the equipment due to any one or more of the following: anyone's abuse, misuse and/or vandalism of the equipment; anyone's negligence in connection with the use or operation of the equipment; any loss of power, power fluctuations, power failure, or power surges that in any way affect the operation of the equipment; fire, smoke, explosions, water, storms, wind, lightening, acts of civil or military authorities, strikes, lockouts, other labor disputes, theft, riot, civil commotion, war, malicious mischief, acts of God, or any other reason or cause beyond our control that affects the use or operation of the equipment. You expressly agree to release and discharge us and our employees for any and all claims and/or losses (including personal injury, death and property damage, specifically including damage to the property which is the subject matter of this agreement) associated therewith or caused thereby. ThyssenKrupp Elevator shall also automatically receive an extension of time commensurate with any delay in performance caused by or related to the aforementioned and you expressly agree to release and discharge ThyssenKrupp Elevator from any and all claims for consequential, special or indirect damages arising out of the performance of this agreement. In no event shall ThyssenKrupp Elevator's liability for damages arising out of this agreement exceed the remaining unpaid installments of the current, unexpired term of this agreement.

Should your system require any of the safety tests on the commencement date of this agreement, ThyssenKrupp Elevator assumes no responsibility for the day-to-day operation of the governor or safeties on traction elevators, or the hydraulic system on hydraulic elevators under the terms of this agreement until the test has been completed and the equipment passed. Should the respective system fail any of those tests, it shall be your sole responsibility to make necessary repairs and place the equipment in a condition that we deem acceptable for further coverage under the terms of this agreement. We shall not be liable for any damage to the building structure or the elevator resulting from the performance of any safety tests we perform at any time under this agreement. If during the initial firefighter's service test, that feature is found to be inoperable, you shall be responsible for all costs associated with necessary repair(s) to bring the elevator(s) into compliance with the applicable elevator codes in your local jurisdiction.

In the event a third party is retained to enforce, construe or defend any of the terms and conditions of this agreement or to collect any monies due hereunder, either with or without litigation, the prevailing party shall be entitled to recover all costs and reasonable attorney's fees.

You hereby waive trial by jury. You agree that this agreement shall be construed and enforced in accordance with the laws of the state where the equipment is located. You consent to jurisdiction of the courts, both state and Federal, of the state in which the equipment is located as to all matters and disputes arising out of this agreement.

In the event any portion of this agreement is deemed invalid or unenforceable by a court of law, public policy or statute, such finding shall not affect the validity or enforceability of any other portion of this agreement.

Our rights under this agreement shall be cumulative and our failure to exercise any rights given hereunder shall not operate to forfeit or waive any of said rights and any extension, indulgence or change by us in the method, mode or manner of payment or any of its other rights shall not be construed as a waiver of any of its rights under this agreement.

Price. The price for the services as stated in this agreement shall be **One Thousand One Hundred Sixty-One** dollars (**$ 1,161.00**) per month, excluding taxes, payable monthly in advance.

Term. This agreement is effective for five (5) years starting May 01, 2010 and is non-cancelable. To ensure continuous service, this agreement will be automatically renewed for successive five (5) year periods, unless either party timely serves written notice upon the other party of its intention to cancel at least ninety (90) days but not more than 120 days before the end of the initial five (5) year period, or at least ninety (90) days but not more than 120 days before the end of any subsequent five (5) year renewal period. Notice shall be sent by certified mail, return receipt requested to the address set forth on page 1 of this agreement. Time is of the essence.

Annual Price Adjustments. Since our costs to provide you with the service set forth in this agreement may increase, we reserve the right to adjust the price of our service under this agreement accordingly. In the event this occurs, we will adjust your monthly price based on the percentage change in the average rate paid to elevator examiners. This rate paid to elevator examiners consists of the hourly rate paid to examiners plus fringe benefits and union welfare granted in place of or in addition to the hourly rate. Fringe benefits include pensions, vacations, paid holidays, group insurance, sickness and accident insurance, and hospital insurance. We also reserve the right to make additional adjustment to the price of our service under this agreement and/or enact surcharges as needed to account for increased fuel prices when such increases exceed the Consumer Price Index (CPI) current rate. We also reserve the exclusive right to make additional adjustment to the price of our service under this agreement in the event that the equipment covered by this agreement is modified from its present state.

Early Payment Discount. You may elect to pay in advance for twelve (12) months of service described in this agreement. Such a pre-payment entitles you to a 3% discount from the annual price in effect at the time of payment.

Overdue Invoices. A service charge of 1½% per month, or the highest legal rate, whichever is more, shall apply to all overdue accounts you have with ThyssenKrupp Elevator that are in any way related to your equipment described in this agreement. If you do not pay any sum due to ThyssenKrupp Elevator related to your equipment described in this agreement, regardless of whether it is billed pursuant to this agreement or any other with us, within sixty (60) days from the billing date, we may also choose to do one or more of the following: 1) suspend all service until all amounts due have been paid in full, and/or 2) declare all sums for the unexpired term of this agreement due immediately as liquidated damages and terminate our obligations under this agreement. If ThyssenKrupp Elevator elects to suspend service, we shall not be responsible for personal injury, death, damage to property (including damage to the equipment that is the subject matter of this agreement) or losses of any other type or kind that is in any way related the ThyssenKrupp Elevator's suspension of service. Upon resumption of service, you will be responsible for

payment to ThyssenKrupp Elevator for all costs we incur that result from our suspension of service and to remedy any damage caused to your equipment during that time. Time is of the essence.

Acceptance. Your acceptance of this agreement and its approval by an authorized manager of ThyssenKrupp Elevator will constitute exclusively and entirely the agreement for the services herein described. All other prior representations or agreements, whether written or verbal, will be deemed to be merged herein and no other changes in or additions to this agreement will be recognized unless made in writing and properly executed by both parties. Should your acceptance be in the form of a purchase order or other similar document, the provisions of this agreement will govern, even in the event of a conflict. This proposal is hereby accepted in its entirety and shall constitute the entire agreement as contemplated by you and us. This proposal is submitted for acceptance within one-hundred twenty (120) days from the Date Submitted by the ThyssenKrupp Elevator representative indicated below.

No agent or employee shall have the authority to waive or modify any of the terms of this agreement without the prior written approval of an authorized ThyssenKrupp Elevator manager.

ThyssenKrupp Elevator Corporation:	W.E. DENISON CORPORATION Managing Agent ~~Bill Denison~~ for: AOAO Marine Surf WAIKIKI, INC.	ThyssenKrupp Elevator Corporation Approval:
By: _____	By: _____	By: Landon deVille
(Signature of ThyssenKrupp Elevator Representative)	(Signature of Authorized Individual)	(Signature of Authorized Individual)
Wynton Pascual	WILLIAM E. DENISON	Landon deVille
	(Print or Type Name)	(Print or Type Name)
(808) 834-6300	PRESIDENT	Branch Manager
	(Print or Type Title)	(Print or Type Title)
June 11, 2010	6-14-10	6-29-10
(Date Submitted)	(Date of Approval)	(Date of Approval)

Special Considerations

SoundNet®

Through its SoundNet communication center, ThyssenKrupp Elevator will provide 24-hour telephone monitoring on all elevator(s) maintained under the monitoring agreement, provided such elevators are equipped with operational telephone equipment capable of placing a call to SoundNet's call center. SoundNet will receive incoming emergency telephone calls from the elevator(s) and forward same to Purchaser's designated emergency contacts. It shall be Purchaser's responsibility to submit an executed Contact Data Sheet (attached as Exhibit 1 hereto) to enable this service, and to advise ThyssenKrupp Elevator immediately in writing of any changes to the emergency contacts during the term of service. Purchaser understands that no revision to emergency contacts will be made without ThyssenKrupp Elevator first receiving such request in writing.

SoundNet service does not include maintenance service for Customer's telephone equipment. Customer retains possession and control of its telephone equipment and is responsible for ensuring uninterrupted operation of the telephones so that they are capable of placing a call to SoundNet's call center. SoundNet service cannot be provided without a telephone located within the elevator(s) described in this agreement that has the calling capability described above.

ThyssenKrupp Elevator shall not be held responsible or liable for any claim, injury, delay, death or detention of loss of life, or loss of property resulting from telephone equipment failure, false alarms or interruption of telephone service or inaccurate data set forth in any related executed Contact Data Sheet. We do not assume any duty or responsibility to advise any caller to take or not take any specific action resulting from an emergency, perceived emergency or any other situation including, but not limited to, entrapment of persons, evacuation, repair or return to service of any equipment.

If SoundNet is unable to reach Customer's designated emergency contacts, a service technician may be dispatched to the site at Purchaser's expense in accordance with ThyssenKrupp Elevator's applicable billing rates. Purchaser agrees that it is within the reasonable discretion of SoundNet service call representatives to dispatch a mechanic or contact emergency personnel if Customer's designated emergency contacts are unavailable. Customer agrees to pay all charges for services provided by any person, organization or municipality contacted as a result of any emergency or perceived emergency call.

Platinum Premier Maintenance Agreement

Exhibit 1 – Contact Data Sheet

Complete Building Information

This contact data is for the building located at:	AOAO Marine Surf WAIKIKI, INC.
	364 Seaside Ave
	Honolulu, HI 96815

Complete Billing Information

Company Bill To Name:	AOAO MARINE SURF WAIKIKI, INC
Billing Address:	C/O W. E. DENISON CORPORATION 3660 WAIALAE AVE. 307
City, State, Zip:	HONOLULU, HI 96816
Attn Line:	

(INTERNAL USE ONLY)

Elevator:	
Branch:	
Service:	
Contract:	

Total No of Elevators in Building:

Elevator #	Elevator Telephone Number Including Area Code

Elevator #	Elevator Telephone Number Including Area Code

In the event of an emergency, or perceived emergency, one or more of the following are to be primary Purchaser contacts:

	Contact Name	Title	Primary Telephone #	Secondary Telephone #
1.	Patty Harris	Building Manager	380-8686	
2.	Jerry Moerke	Maintenance Supervisor	931-2456	
3.	TIM HAVERLY	Security Chief	931-2415	
4.				

If unable to reach anyone at the above listed numbers, SoundNet has the express permission of Purchaser to contact the elevator service company listed below.

✓ Elevator Service Company: ThyssenKrupp Elevator Phone Number:

In the event of an Emergency or perceived emergency, SoundNet has the express permission to contact one or more of the following (911 is not sufficient, local phone numbers are required):

Police Department: ( ) -
Fire Department: ( ) -

Special instructions/remarks:

It is the responsibility of Purchaser to immediately advise SoundNet in writing of any changes to the contacts or numbers listed on this Contact Data Sheet. Purchaser agrees to pay all charges for services incurred by any person, organization or municipality as a result of any emergency or perceived emergency call. It is also expressly understood that SoundNet does not have and does not assume any duty or responsibility for any person or entity that fails to respond to any emergency or perceived emergency situation.

ThyssenKrupp Elevator Corporation:	W.E. DENISON CORPORATION Managing Agent for: AOAO Marine Surf WAIKIKI, INC.	ThyssenKrupp Elevator Corporation Approval:
By: (Signature of ThyssenKrupp Elevator Representative)	By: PRESIDENT (Signature of Authorized Individual)	By: (Signature of Authorized Individual)
Wynton Pascual (Print or Type Name)	WILLIAM E. DENISON (Print or Type Name)	Landon deVille (Print or Type Name)
(808) 834-6300 (Print or Type Title)	PRESIDENT (Print or Type Title)	Branch Manager (Print or Type Title)
June 11, 2010 (Date Submitted)	6-14-10 (Date of Approval)	6-29-10 (Date of Approval)

thyssenkrupp

Service Request Number: 33409266
Task Number: 16626307, TKE Callback
Reported: 09-MAY-2018 03:24:00 PM

Billable : Yes
Work Complete

Branch Address: Branch #108300 2880 UALENA STREET, Honolulu, HI, 96819 **Branch Phone Number:** 808-834-6300	**Route No.:** P*006 **Mechanic:** KERFOOT, SHAWN **Contract No.:** US52787 **Unit Serial No.:** US133680 **Unit Nick Name:** 1 **Customer PO:**
Customer No.: 73744 **Customer:** AOAO MARINE SURF WAIKIKI INC **Location:** MARINE SURF WAIKIKI 364 SEASIDE AVE, HONOLULU, HI, 96815-2532	**Caller Name:** HAROLD HITCHCOCK **Caller Phone No.:** 8087548559

Caller Remarks

NOT RSPD, DRS CYCL, STK IN BSMNT, UNOC, NO INJ, SVC TODAY OTOK

Resolution

09-MAY-18 : Basement doors knocked off track, need two guys for repairs, per mgr Harold shutdown for am svc
10-MAY-18 : Worked on interlock run and monitor elevator back in service
10-MAY-18 : Adjusted door hangers, back in svc

Labor Time and Expenses

Line Type	Labor Type 1.0	1.5	1.7	2.0	Date	Start Time	End Time	Expense Amount	Status
LABOR			.5		09-MAY-2018	04:00:00 PM	04:30:00 PM		P
LABOR			.5		09-MAY-2018	04:30:00 PM	05:00:00 PM		P
LABOR			.75		09-MAY-2018	05:00:00 PM	05:45:00 PM		P

Labor Summary

Labor Type	Hours
1.7	1.75
Total	1.75

Customer Signature	Spoke to Harold D	**Mechanic Signature**	CK
Signed By	Harold		

This document contains preliminary information regarding the work performed, and the time allotted for such work. Upon review, final adjustments may be made consistent with customer's service agreement.

EXHIBIT "C"

thyssenkrupp

Service Request Number: 33409266
Task Number: 16633626, TKE Callback
Reported: 09-MAY-2018 03:24:00 PM

Billable : Yes
Work Complete

Branch Address: Branch #108300 2880 UALENA STREET, Honolulu, HI, 96819 **Branch Phone Number:** 808-834-6300	**Route No.:** P*006 **Mechanic:** KERFOOT, SHAWN **Contract No.:** US52787 **Unit Serial No.:** US133680 **Unit Nick Name:** 1 **Customer PO:**
Customer No.: 73744 **Customer:** AOAO MARINE SURF WAIKIKI INC **Location:** MARINE SURF WAIKIKI 364 SEASIDE AVE, HONOLULU, HI, 96815-2532	**Caller Name:** HAROLD HITCHCOCK **Caller Phone No.:** 8087548559

Caller Remarks

NOT RSPD, DRS CYCL, STK IN BSMNT, UNOC, NO INJ, SVC TODAY OTOK

Resolution

09-MAY-18 : Basement doors knocked off track, need two guys for repairs, per mgr Harold shutdown for am svc
10-MAY-18 : Worked on interlock run and monitor elevator back in service
10-MAY-18 : Adjusted door hangers, back in svc

Labor Time and Expenses

Line Type	Labor Type 1.0	1.5	1.7	2.0	Date	Start Time	End Time	Expense Amount	Status
LABOR	.25				10-MAY-2018	07:30:00 AM	07:45:00 AM		P
LABOR	1				10-MAY-2018	07:45:00 AM	08:45:00 AM		P

Labor Summary

Labor Type	Hours
1.0	1.25
Total	1.25

Customer Signature	Spoke to Harold	**Mechanic Signature**	
Signed By	Harold		

This document contains preliminary information regarding the work performed, and the time allotted for such work. Upon review, final adjustments may be made consistent with customer's service agreement.

thyssenkrupp

Service Request Number: 33409266
Task Number: 16638706, TKE Callback
Reported: 09-MAY-2018 03:24:00 PM

Billable : Yes
Work Complete

Branch Address: Branch #108300 2880 UALENA STREET, Honolulu, HI, 96819 **Branch Phone Number:** 808-834-6300	**Route No.:** P*006 **Mechanic:** UCHIDA, STUART **Contract No.:** US52787 **Unit Serial No.:** US133680 **Unit Nick Name:** 1 **Customer PO:**
Customer No.: 73744 **Customer:** AOAO MARINE SURF WAIKIKI INC **Location:** MARINE SURF WAIKIKI 364 SEASIDE AVE, HONOLULU, HI, 96815-2532	**Caller Name:** HAROLD HITCHCOCK **Caller Phone No.:** 8087548559

Caller Remarks

NOT RSPD, DRS CYCL, STK IN BSMNT, UNOC, NO INJ, SVC TODAY OTOK

Resolution

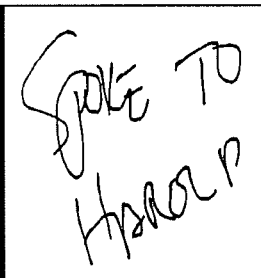
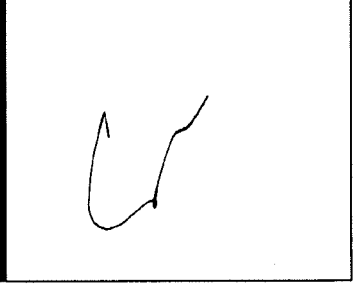
09-MAY-18 : Basement doors knocked off track, need two guys for repairs, per mgr Harold shutdown for am svc
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Labor Time and Expenses

Line Type	Labor Type 1.0	1.5	1.7	2.0	Date	Start Time	End Time	Expense Amount	Status
LABOR	1				10-MAY-2018	07:30:00 AM	08:30:00 AM		P

Labor Summary

Labor Type	Hours
1.0	1
Total	1

Customer Signature		**Mechanic Signature**	
Signed By	Harold		

This document contains preliminary information regarding the work performed, and the time allotted for such work. Upon review, final adjustments may be made consistent with customer's service agreement.

thyssenkrupp

thyssenkrupp Elevator Corporation
Attn: Accounts Receivable Dept
1265 E FORT UNION BLVD ,SUITE 350
COTTONWOOD HEIGHTS, UT 84047

INVOICE

INVOICE DATE:	05/16/2018
CUSTOMER #:	73744
SR #:	33409266
INVOICE #:	5000875502
PO #:	
TERMS:	IMMEDIATE
TOTAL DUE:	$2,260.15

BILL TO:

ATTN: ACCOUNTS PAYABLE
AOAO MARINE SURF WAIKIKI INC
364 SEASIDE AVE
HONOLULU, HI 96815-2532

SHIP TO:

MARINE SURF WAIKIKI
364 SEASIDE AVE
HONOLULU, HI 96815-2532

Reported By: HAROLD HITCHCOCK, 808-754-8559 on 09-May-2018 15:24:00
Resolution Summary: CUSTOMER REPORTED: ELEVATOR NOT RESPONDING, OT OK. TECH (2): FOUND DOORS KNOCKED OFF TRACK. WILL RETURN TO FIX. 5/10 ADJUSTED DOOR HANGERS AND INTERLOCK, TESTED AND RETURNED TO SERVICE. BILLING DUE TO MISUSE NOT COVERED BY CONTRACT.

DATE	DESCRIPTION	QTY	UOM	PRICE	AMOUNT
	HONOLULU BRANCH **Unit:** 1 **Serial #:** US133680 **Contract #:** US52787 Platinum Premiere - Full Maintenance, 24 Hour Callbacks Included - Elevator - With Phone Monitoring				
05/10/2018	Labor Callback Daytime	1	HR	$477.00	$477.00
05/10/2018	Travel Daytime	.25	HR	$477.00	$119.25
05/10/2018	Labor Callback Daytime	1	HR	$477.00	$477.00
05/09/2018	Travel Extra Work Outside the Contract Daytime	.5	HR	$477.00	$238.50
05/09/2018	Labor Extra Work Outside Contract Daytime	.5	HR	$477.00	$238.50
05/09/2018	Travel Extra Work Outside the Contract Overtime	.75	HR	$810.90	$608.18

AMOUNT	SALES TAX	PLEASE PAY THIS AMOUNT
$2,158.43	$101.72	$2,260.15

This charge was created because service was not covered by maintenance contracts you may have with thyssenkrupp Elevator.
For Service Related or General Questions, please call 808-834-6300 . For Billing or Payment Questions, please call 770-261-0019 .

DETACH AND RETURN WITH YOUR PAYMENT

thyssenkrupp

thyssenkrupp Elevator Corporation
Attn: Accounts Receivable Dept
1265 E FORT UNION BLVD ,SUITE 350
COTTONWOOD HEIGHTS, UT 84047

INVOICE DATE: 05/16/2018
CUSTOMER #: 73744
SR #: 33409266
INVOICE #: 5000875502
PO #:
TERMS: IMMEDIATE
TOTAL DUE: 2,260.15

Amount Enclosed: $_____

Payment Method
□ Personal check enclosed □ Money order enclosed □ Cashier's check
Please Make Check Payment To: thyssenkrupp Elevator Corporation

REMIT PAYMENT TO:

thyssenkrupp Elevator Corporation
PO Box 3796
Carol Stream, IL 60132-3796

EXHIBIT "D"

IN THE DISTRICT COURT OF THE FIRST CIRCUIT

HONOLULU DIVISION

STATE OF HAWAI'I

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawai'i nonprofit corporation, by its Board of Directors, Plaintiff, v. NIKODEM PIKOR, Defendant.	CIVIL NO. 1RC19-1-0003776 **NOTICE OF HEARING OF MOTION**
NIKODEM PIKOR, Third-Party Plaintiff, v. THYSSENKRUPP ELEVATOR CORPORATION, Foreign Profit Corporation, Third-Party Defendant.	

NOTICE OF HEARING OF MOTION

TO: JOSEPH RYAN, JR., ESQ.
Joseph Ryan, Jr. AAL LLLC
41-430 Waikupanaha Street
Waimanalo, HI 96795

Attorneys for Defendant/Third-Party Plaintiff
NIKODEM PIKOR

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Attorneys for Plaintiff
ASSOCIATION OF APARTMENT OWNERS OF
MARINE SURF WAIKIKI, INC.

APRIL LURIA, ESQ.
Roeca, Luria & Shinn LLP
841 Bishop Street, Suite 900
Honolulu, HI 96813

Attorneys for Counterclaim Defendant
ASSOCIATION OF APARTMENT OWNERS OF
MARINE SURF WAIKIKI, INC.

PLEASE TAKE NOTICE that the foregoing motion shall come on for hearing before the presiding judge in his/her courtroom in the Honolulu District Court, Honolulu Division, 1111 Alakea Street, 10th floor, Courtroom B, Honolulu, Hawai'i 96813, on **Tuesday, January 21, 2020 at 8:30 a.m.**, or as soon thereafter as counsel may be heard.

DATED: Honolulu, Hawai'i, January 6, 2020.

CADES SCHUTTE
A Limited Liability Law Partnership

/s/ *Jarrett A. Dempsey*
CALVERT G. CHIPCHASE IV
JARRETT A. DEMPSEY
Attorneys for Third-Party Defendant
THYSSENKRUPP ELEVATOR
CORPORATION

IN THE DISTRICT COURT OF THE FIRST CIRCUIT

HONOLULU DIVISION

STATE OF HAWAI'I

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawai'i nonprofit corporation, by its Board of Directors,, Plaintiff, v. NIKODEM PIKOR, Defendant.	CIVIL NO. 1RC19-1-0003776 **CERTIFICATE OF SERVICE**
NIKODEM PIKOR,, Third-Party Plaintiff, v. THYSSENKRUPP ELEVATOR CORPORATION, Foreign Profit Corporation,, Third-Party Defendant.	

CERTIFICATE OF SERVICE

The undersigned hereby certifies that a true and correct copy of the foregoing document was served on this date via JEFS and/or via U.S. Mail, postage prepaid, or hand delivery as indicated below:

PHILIP L. LAHNE, ESQ. *via JEFS*
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Anderson Lahne & Fujisaki LLP EM: ghorio@alf-hawaii.com
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Attorneys for Plaintiff
ASSOCIATION OF APARTMENT OWNERS OF
MARINE SURF WAIKIKI, INC.

JOSEPH RYAN, JR., ESQ. *via JEFS and U.S. Mail*
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NIKODEM PIKOR

APRIL LURIA, ESQ. *via JEFs*
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Honolulu, HI 96813

Attorneys for Counterclaim Defendant
ASSOCIATION OF APARTMENT OWNERS OF
MARINE SURF WAIKIKI, INC.

DATED: Honolulu, Hawai'i, January 6, 2020

CADES SCHUTTE
A Limited Liability Law Partnership

/s/ *Jarrett A. Dempsey*
CALVERT G. CHIPCHASE
JARRETT A. DEMPSEY
Attorneys for Third-Party Defendant
THYSSENKRUPP ELEVATOR
CORPORATION